

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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DARIUS ROSEBOROUGH,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NYPD DETECTIVE WILFREDO ACEVEDO and
NYPD DETECTIVE JORGE MORBAN,

Defendants.

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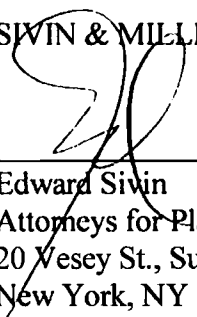
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 7, 2018

SIVIN & MILLER, LLP

By



Edward Sivvin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

The City of New York, c/o Corporation Counsel, 100 Church Street, New York, NY 10007

NYPD Detective Wilfredo Acevedo: c/o NYPD Detective Bureau, Manhattan North Homicide,
One Police Plaza, New York, NY 10038

NYPD Detective Jorge Morban: c/o NYPD 32nd Pct. Detective Squad, 250 W. 135th Street, New
York, NY 10030

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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DARIUS ROSEBOROUGH,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD DETECTIVE WILFREDO ACEVEDO and
NYPD DETECTIVE JORGE MORBAN,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
2. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).
3. That at all times herein mentioned, defendant NYPD Detective Wilfredo Acevedo (hereinafter “Acevedo”) was and is a police detective employed by the NYPD.
4. That at all times herein mentioned, Acevedo was acting within the course and scope of his employment with the NYPD.
5. That at all times herein mentioned, Acevedo was acting under color of state law.
6. That at all times herein mentioned, defendant NYPD Detective Jorge Morban (hereinafter “Morban”) was and is a police detective employed by the NYPD.
7. That at all times herein mentioned, Morban was acting within the course and

scope of his employment with the NYPD.

8. That at all times herein mentioned, Morban was acting under color of state law.

THE FACTS

9. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

10. That on September 4, 2015, officers with the NYPD, including but not limited to Acevedo and Morban, and hereinafter referred to collectively as “the officers,” forcibly entered plaintiff’s residence without a warrant, without justification, without consent, and without probable cause to believe that plaintiff committed or was about to commit any crime.

11. That once inside his residence, the officers forcibly searched plaintiff and his residence without his consent and used unnecessary and unreasonable force against plaintiff without any legal justification or provocation.

12. That the use of force against plaintiff included, but was not limited to, pointing firearms at plaintiff and tightly handcuffing plaintiff.

13. That after entering his residence, the officers detained, imprisoned, and arrested plaintiff and forcibly transported plaintiff to a police precinct.

14. That on or about September 5, 2015, the officers initiated and/or caused to be initiated a criminal prosecution of plaintiff, charging and/or causing plaintiff to be charged with various crimes of which he was innocent and of which the officers knew plaintiff was innocent.

15. That in support of the aforesaid prosecution, Acevedo signed a supporting deposition and Criminal Court Complaint in which he made accusations against plaintiff that were false and that he knew to be false.

16. That in support of the aforesaid prosecution, the officers knowingly conveyed false information and accusations about plaintiff to fellow officers, to the Office of the District Attorney, and to a Grand Jury.

17. That the aforementioned false information and accusations included, but were not limited to, accusations by Morban that an eyewitness identified plaintiff as the perpetrator of a shooting, and accusations by Acevedo that plaintiff was identified as the perpetrator of a shooting both by the victim of the shooting and by an eyewitness, and that officers recovered a gun or parts of a gun from plaintiff's residence.

18. That the aforesaid false information and accusations constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a jury's decision on plaintiff's guilt or innocence.

19. That in support of the aforesaid prosecution, the officers also knowingly withheld exculpatory evidence from plaintiff, from the Office of the District Attorney, and from the Grand Jury.

20. That the withheld exculpatory evidence included, but was not limited to, evidence that the victim of the shooting was in the intensive care unit of a hospital and was unable to be interviewed, to have visitors, or to identify the perpetrator of the crime, evidence that no fingerprints or DNA matching that of plaintiff were recovered from the gun or portions of the gun that allegedly were recovered from plaintiff's residence, and other evidence that tended to exculpate plaintiff.

21. That the officers did not have probable cause to believe that plaintiff was guilty of any of the crimes with which he was charged.

22. That the officers did not have probable cause to believe that the prosecution

against plaintiff would succeed, since they knew that the evidence upon which the prosecution was based was obtained by the officers illegally.

23. That as a result of the false criminal charges that were initiated against plaintiff by the officers, the false information and accusations made by the officers, and the withholding of exculpatory evidence by the officers, plaintiff was incarcerated for over one year, was required to make court appearances, and suffered a deprivation of his liberty.

24. That on or about September 22, 2016, all criminal charges against plaintiff were dismissed and the criminal proceeding terminated favorably to plaintiff.

25. That defendants' actions were intentional, malicious, and without excuse or justification.

26. That as a result of the actions of defendants, plaintiff sustained severe emotional distress and loss of liberty, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur economic loss, and sustained other damages.

FIRST CAUSE OF ACTION AGAINST ACEVEDO and MORBAN
(42 U.S.C. § 1983: Excessive Force)

27. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

28. That the aforementioned actions of the officers in using excessive force against plaintiff constituted an unlawful seizure of plaintiff in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

SECOND CAUSE OF ACTION AGAINST ACEVEDO and MORBAN
(42 U.S.C. § 1983: Illegal Search and Detention)

29. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

30. That the aforementioned actions of the officers in forcibly entering plaintiff's residence without a warrant and then forcibly searching plaintiff and plaintiff's residence and forcibly detaining plaintiff constituted unlawful searches and seizures of plaintiff in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION AGAINST ACEVEDO and MORBAN
(42 U.S.C. § 1983: False Arrest/False Imprisonment)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

32. That the aforementioned actions of the officers in arresting plaintiff without a warrant and without probable cause, and thereafter imprisoning plaintiff, constituted unlawful seizures of plaintiff in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

FOURTH CAUSE OF ACTION AGAINST ACEVEDO and MORBAN
(42 U.S.C. § 1983: Malicious Prosecution)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the aforementioned actions of the officers in prosecuting plaintiff and/or causing plaintiff to be prosecuted for crimes of which the officers knew plaintiff to be innocent and with charges on which the officers knew the prosecution likely would not succeed constituted a

malicious prosecution of plaintiff and an unlawful seizure of plaintiff in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST ACEVEDO and MORBAN
(42 U.S.C. § 1983 Claim Based on Denial of Right to Fair Trial)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforesaid actions by the officers in conveying false information and accusations about plaintiff constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST ACEVEDO and MORBAN
(42 U.S.C. § 1983 Claim Based on *Brady* Violation)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That the aforesaid actions by the officers in withholding exculpatory evidence and information constituted a violation of plaintiff's rights under the Fourteenth Amended to the United States Constitution and under *Brady v. Maryland*, 373 U.S. 83, and entitles plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SEVENTH CAUSE OF ACTION AGAINST ACEVEDO and MORBAN
(42 U.S.C. § 1983 Claim Based on Failure to Intervene)

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. That at all times herein mentioned, Acevedo and Morban observed and/or had

knowledge of the illegal and unconstitutional conduct of their fellow officers, had reasonable opportunities to intervene to prevent and/or stop that conduct, but deliberately failed to intervene.

41. That as a result of the deliberate failure of Acevedo and Morban to intervene, plaintiff sustained the injuries alleged herein and is entitled to recover damages against Acevedo and Morban under 42 U.S.C. § 1983.

EIGHTH CAUSE OF ACTION AGAINST THE CITY
(Monell Claim)

42. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

43. That prior to the events alleged herein, Acevedo and Morban had subjected other citizens to excessive force, false arrest, false imprisonment, illegal searches, malicious prosecution, and other abuses of authority, and had subjected other citizens to conduct that was in violation of their constitutional rights.

44. That despite these prior incidents, of which the City had knowledge, the City deliberately failed and refused to take appropriate corrective measures to discipline and/or properly train Acevedo and Morban.

45. That the City exhibited a deliberate indifference to a pattern of unconstitutional conduct by Acevedo and Morban.

46. That the illegal actions against plaintiff by Acevedo and Morban resulted from the City's deliberate indifference to a pattern of unconstitutional conduct by Acevedo and Morban and its deliberate failure and refusal to take appropriate corrective measures to discipline and/or properly train Acevedo and Morban.

47. That by reason of the foregoing, plaintiff is entitled to recover damages against

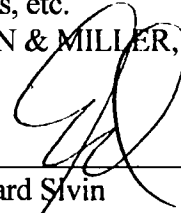
the City pursuant to 42 U.S.C. § 1983 and *Monell v. Dept. of Social Services*, 436 U.S. 658.

48. That all of the foregoing actions fall within one or more of the exceptions set forth in CPLR Article 16 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Acevedo and Morban, and attorney's fees against all defendants pursuant to 42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
April 9, 2018

Yours, etc.
SIVIN & MILLER, LLP

By 
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

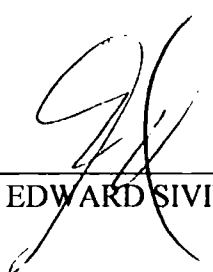
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) currently is not in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
April 9, 2018



EDWARD SIVIN

Index No.

Year 2018

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SIVIN & MILLER, LLP

Attorneys for Plaintiff

20 Vesey St., Suite 1400

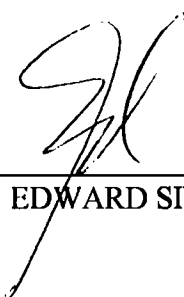
New York, NY 10007

(212) 349-0300

FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
April 9, 2018